

# Ajay Kumar Jaiswal v. Uttar Pradesh Purvanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 16 June 2016 · Writ-C No. 28709 of 2016 · Writ - C No. 28709 of 2016 ·  
**Writ disposed of; relegated to Regulation 6.5 with 50% deposit stay.**

## HEADNOTE

A consumer who disputes the correctness of an electricity bill, including arrears included in it, must apply for correction under Regulation 6.5 of the U.P. Electricity Supply Code, 2005. The Executive Engineer is to decide such an application by a reasoned speaking order within two weeks of production of a certified copy of the order. Deposit of 50% of the billed amount stays recovery of the balance till that disposal. The writ was disposed of without deciding the bill on merits.

## FACTUAL SUMMARY

The petitioner, Ajay Kumar Jaiswal, a consumer of Uttar Pradesh Purvanchal Vidyut Vitran Nigam Ltd., approached the Allahabad High Court after a recovery certificate was issued on an electricity bill of Rs. 57,788. He contended that the bill wrongly included arrears of Rs. 47,355. The writ petition sought interference with the disputed bill and the recovery initiated thereon.

## HOLDING-UNITS

### HOLDING-UNIT · UP-2005::6.5

bill-correction-application

#### HOLDING

Where the consumer disputes the correctness of an electricity bill, the remedy is an application for correction of the bill under Regulation 6.5 of the U.P. Electricity Supply Code, 2005. The Executive Engineer must consider and decide that application by a reasoned speaking order within two weeks of production of a certified copy of the Court's order. If the consumer deposits 50% of the amount, the balance shall not be recovered till disposal of the application. ¶ 1

## PRINCIPLE TAGS

**billing-objection-to-executive-engineer-under-6.5** Bill-and-arrears dispute after a recovery certificate was sent to the Executive Engineer under Regulation 6.5 rather than decided on the writ. ¶ 1

## NOT DECIDED — NEGATIVE AUTHORITY

### NOT DECIDED — WHETHER THE ARREARS OF RS. 47,355 INCLUDED IN THE BILL OF RS. 57,788 WERE INCORRECT

Left to the Executive Engineer on a Regulation 6.5 application. ¶ 1